

CASE NAME: WELLS FARGO BANK, N.A. VS. CANDIS SPENCER

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: DONALD L. COX**

FILED BY: SPENCER, CANDIS

TENTATIVE RULING:

Donald L. Cox (“Counsel”) filed a Motion to be Relieved as Counsel on September 8, 2025 (the “Motion to be Relieved as Counsel”). The matter was set for hearing on December 2, 2025.

Background

Counsel seeks to be relieved as attorneys for defendant Candis Spencer (“Defendant”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship due to “[i]rreconcilable differences,” lack of communication and non-payment of fees. See Declaration filed September 8, 2025, ¶2 and Attachment 2. Defendant has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.

6. 9:00 AM CASE NUMBER: L24-05801

CASE NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC VS. YAMESE PARKERSMITH

***HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT UNDER STIP FILED BY PLNTF ON 8/7/25**

FILED BY:

TENTATIVE RULING:

Plaintiff Portfolio Recovery Associates, LLC (“Plaintiff”) filed a Motion to Enter Judgment under Terms of Stipulated Settlement on August 7, 2025 (“Motion to Enter Stipulated Judgment after Default”). The Motion to Enter Stipulated Judgment after Default was set for hearing on October 28, 2025.

Plaintiff appeared and confirmed that notice of the hearing date had not been given to Defendant and, therefore, the Court continued the matter to December 2, 2025, 9:00 a.m. in Department 34 of the Court to ensure that notice has properly been given to the Defendant. **Plaintiff was ordered to give notice to Defendant of this continued hearing date on the pending motion. See Order entered November 10, 2025.**

No further filings of record on the Court's docket indicate that any such notice was given by Plaintiff to Defendant. **An Amended Notice of Motion now appears on the Court's docket with a filing date of October 3, 2025, with notice of the prior October 28, 2025 date. However, no further Amended Notice of Motion appears with notice of the current December 2, 2025 hearing date.**

Background

The parties entered into that certain settlement agreement filed on November 1, 2024 (the "Settlement Agreement"), the terms of which included payment by the defendant Yamese Parkersmith ("Defendant") in the amount of \$4,354.42 plus costs, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Request for Judicial Notice filed August 7, 2025 ("RJN"), **Exhibit B**, Settlement Agreement, ¶¶1-4; see also Declaration filed as part of Motion to Enter Stipulated Judgment after Default ("Supporting Declaration"), ¶¶2-3. The Court hereby takes judicial notice of the Settlement Agreement. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. See Settlement Agreement, ¶¶1-4 and 7.

Defendant defaulted on the Payment Terms and Conditions. Supporting Declaration, ¶4. Defendant failed to cure after notice. *Id.* at ¶5 and **Exhibit A** thereto.

After credit for amounts paid, there remains \$4,154.42 due and owing, plus costs of \$495.61, for a total of \$4,650.03. See Supporting Declaration, ¶¶6-7.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion. **However, THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was served with notice of the new hearing date.**
2. Subject to paragraph no. 1 above, The Court finds that Defendant is in default of the Settlement Agreement.
3. Subject to paragraph no. 1 above, The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$4,154.42, plus costs of \$495.61, for a total judgment of \$4,650.03.
4. Subject to paragraph no. 1 above, Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.